

the trustee was the "settlor" within the meaning of the 32nd section, and had the power to appoint a protector; and as he did not desire it, the Court, unless there were good reasons to the contrary, would not control his discretion; that a protector under the Act was an irresponsible person, and was at liberty to act from caprice, ill-will, or any bad motive, and might even take a bribe for consenting to bar the entail, without being amenable to the Court, and therefore, on the whole, it was better not to clog the settlement with a protector (*d*).

20. **Gravelkind lands.** — Where *gravelkind* lands are the subject of the executory trust, the circumstance of the custom will not prevent the settlement being made upon [*122] the first and other sons successively, for * the heirs take not by custom, but under the construction of a Court of Equity, which must be guided by the rules of the Common Law (*a*).

21. **Where the testator directs a settlement, but formally declares the limitations.** — Where the Court enlarges and rectifies the will it does so on the ground of the limitations having been imperfectly declared; but if a testator direct a settlement, and be *his own conveyancer*, that is, declare the limitations himself, intending them to be *final*, the hands of the Court are bound, and the words must be taken in their natural sense (*b*). Thus where a testator devised to A. for life without impeachment of waste, remainder to trustees to preserve contingent remainders, remainder to the heirs of the body of A., remainders over, and then directed the residue of his personal estate to be laid out in the purchase of lands, and declared that the lands when purchased "should remain and continue to, for, and upon such and the like estate or estates, uses, trusts, intents, and purposes, and under and subject to the like charges, restrictions, and limitations, as were by him before limited, and declared of and concerning his lands and premises thereinbefore devised, or

(*d*) *Banks v. Le Despencer*, 11 Sim. 508.

(*a*) *Roberts v. Dixwell*, 1 Atk. 607.

(*b*) *Franks v. Price*, 3 Beav. 182;

and see *Rochford v. Fitzmaurice*, 1 Conn. & Laws. 173; 2 Drur. & War. 21; *Doncaster v. Doncaster*, 3 Kay & J. 26.